

SPOUSAL PROPERTY PETITION

TENTATIVE RULING: The Petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Edwin Vincent, A minor et al v. Fred William Gallegos et al

22CV000060

CONFERENCE STATUS RE: STATUS OF SETTLEMENT DISTRIBUTION / MC-356

TENTATIVE RULING: The Court has received and reviewed the Declaration of Jacob Chobanian, Esq., filed September 11, 2026, regarding the status of depositing the minor’s settlement checks. The Court finds, from the matters set forth therein that counsel is working diligently to comply with the Court’s November 20, 2025 Amended Order. The matter is, therefore, CONTINUED to December 16, 2026, at 8:30 a.m. in Dept. A to allow the Guardian Ad Litem additional time to deposit the funds pursuant to that order. If an MC-356 Form is not filed prior to the next hearing, Petitioner shall file a declaration providing an updated status of his efforts.

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LVNV Funding LLC v. Kaitlyn Bolton

26CV000932

MOTION FOR ORDER DEEMING REQUEST FOR ADMISSION TO DEFENDANT ADMITTED AND FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Defendant is ordered to pay to Plaintiff, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$310. Plaintiff is directed to provide notice of entry of order.

Plaintiff LVNV Funding LLC (“Plaintiff”) moves, pursuant to Code of Civil Procedure, sections 2023.010, 2023.030, subdivision (a), 2033.290, subdivision (d), 2033.300 and 2031.010,¹ for an order establishing the admissions by Defendant Kaitlyn Bolton (“Defendant”) of all matters set forth in Plaintiff’s Requests for Admissions, Set One on the grounds that the Requests are relevant to the subject matter of this litigation and are reasonably calculated to lead to the discovery of admissible evidence in this case. Plaintiff further moves for an Order of monetary sanctions in an amount equal to Plaintiff’s reasonable expenses, including attorney’s fees and costs incurred in the amount of \$810.00 in bringing this motion and attending the hearing.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Laura M. D’Anna (“D’Anna Decl.”) at ¶¶ 2-4.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the Requests are deemed admitted.

“It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (§ 2033.280, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds that the hourly rate charged by counsel is reasonable. (See D’Anna Decl. at ¶ 5.) The Court further finds that one hour is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Defendant is GRANTED IN PART. Defendant is ordered to pay to Plaintiff, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (1 hr x \$250/hr + \$60 filing fee) = \$310.

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In The Matter of Jared Casper

26CV001497

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.